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ments to issuers.” CMS, Risk Corridors Payments for 2015, p. 1 (2016). CMS also confirmed that “HHS w[ould] record risk corridors payments due as an obligation of the United States Government for which full payment is required.” *Ibid.* And at the close of the second year, Congress enacted another appropriations bill with the same rider as before. See Pub. L. 114–113, § 225, 129 Stat. 2624 (providing for the fiscal year ending September 30, 2016).

The program’s final year, 2016, was similar. The Government owed unprofitable insurers about \$3.95 billion more than profitable insurers owed the Government. See CMS, Risk Corridors Payment and Charge Amounts for the 2016 Benefit Year (2017). And Congress passed an appropriations bill with the same rider. See Pub. L. 115–31, § 223, 131 Stat. 543 (providing for the fiscal year ending September 30, 2017).

All told, the Risk Corridors program’s deficit exceeded \$12 billion.

D

The dispute here is whether the Government must pay the remaining deficit. Petitioners in these consolidated cases are four health-insurance companies that participated in the healthcare exchanges: Maine Community Health Options, Blue Cross and Blue Shield of North Carolina, Land of Lincoln Mutual Health Insurance Company, and Moda Health Plan, Inc. They assert that their plans were unprofitable during the Risk Corridors program’s 3-year term and that, under § 1342, the HHS Secretary still owes them hundreds of millions of dollars.

These insurers sued the Federal Government for damages in the United States Court of Federal Claims, invoking the Tucker Act, 28 U. S. C. § 1491. They alleged that § 1342 of the Affordable Care Act obligated the Government to pay the full amount of their losses as calculated by the statutory formula and sought a money judgment for the unpaid sums

owed—a claim that, if successful, could be satisfied through the Judgment Fund.³ These lawsuits saw mixed results in the trial courts. Petitioner Moda prevailed; the others did not.⁴

A divided panel of the United States Court of Appeals for the Federal Circuit ruled for the Government in each appeal. See 892 F. 3d 1311; 892 F. 3d 1184 (2018); 729 Fed. Appx. 939 (2018). As relevant here, the Federal Circuit concluded that § 1342 had initially created a Government obligation to pay the full amounts that petitioners sought under the statutory formula. See 892 F. 3d, at 1320–1322. The court also recognized that “it has long been the law that the government may incur a debt independent of an appropriation to satisfy that debt, at least in certain circumstances.” *Id.*, at 1321.

Even so, the court held that Congress’ appropriations riders impliedly “repealed or suspended” the Government’s obligation. *Id.*, at 1322. Although the panel acknowledged that “[r]epeals by implication are generally disfavored”—especially when the “alleged repeal occurred in an appropriations bill”—it found that the riders here “adequately expressed Congress’s intent to suspend” the Government’s payments to unprofitable plans “beyond the sum of pay-

³For a meritorious claim brought within the Tucker Act’s 6-year statute of limitations, 28 U.S.C. § 2501, federal law generally requires that the “final judgment rendered by the United States Court of Federal Claims against the United States . . . be paid out of any general appropriation therefor.” § 2517(a). The Judgment Fund is a permanent and indefinite appropriation for “[n]ecessary amounts . . . to pay final judgments, awards, compromise settlements, and interest and costs specified in the judgments or otherwise authorized by law when . . . payment is not otherwise provided for.” 31 U.S.C. § 1304(a)(1).

⁴Compare 130 Fed. Cl. 436 (2017) (granting Moda Health Plan partial summary judgment on its statutory and implied-in-fact-contract claims), with 129 Fed. Cl. 81 (2016) (dismissing Land of Lincoln’s statutory, contract, and Takings Clause claims), 131 Fed. Cl. 457 (2017) (dismissing Blue Cross and Blue Shield’s statutory and contract claims), and 133 Fed. Cl. 1 (2017) (dismissing Maine Community Health’s statutory claims).

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ments” it collected from profitable plans. *Id.*, at 1322–1323, 1325.

Judge Newman dissented, observing that the Government had not identified any “statement of abrogation or amendment of the statute,” nor any “disclaimer” of the Government’s “statutory and contractual commitments.” *Id.*, at 1335. The dissent also reasoned that precedent undermined the court’s conclusion and that the appropriations riders could not apply retroactively because the Government had used the Risk Corridors program to induce insurers to enter the exchanges. *Id.*, at 1336–1339. Emphasizing the importance of Government credibility in public-private enterprise, the dissent warned that the majority’s decision would “undermin[e] the reliability of dealings with the government.” *Id.*, at 1340.

A majority of the Federal Circuit declined to revisit the court’s decision en banc, 908 F. 3d 738 (2018) (*per curiam*); see also *id.*, at 740 (Newman, J., dissenting); *id.*, at 741 (Wallach, J., dissenting), and we granted certiorari, 588 U. S. 905 (2019).

These cases present three questions: First, did § 1342 of the Affordable Care Act obligate the Government to pay participating insurers the full amount calculated by that statute? Second, did the obligation survive Congress’ appropriations riders? And third, may petitioners sue the Government under the Tucker Act to recover on that obligation? Because our answer to each is yes, we reverse.

II

The Risk Corridors statute created a Government obligation to pay insurers the full amount set out in § 1342’s formula.

A

An “obligation” is a “definite commitment that creates a legal liability of the government for the payment of goods and services ordered or received, or a legal duty . . . that

could mature into a legal liability by virtue of actions on the part of the other party beyond the control of the United States.” GAO, A Glossary of Terms Used in the Federal Budget Process 70 (GAO-05-734SP, 2005). The Government may incur an obligation by contract or by statute. See *ibid.*

Incurring an obligation, of course, is different from paying one. After all, the Constitution’s Appropriations Clause provides that “No Money shall be drawn from the Treasury, but in Consequence of Appropriations made by Law.” Art. I, § 9, cl. 7; see also GAO, Principles of Federal Appropriations Law 2–3 (4th ed. 2016) (hereinafter GAO Redbook) (“[T]he authority to incur obligations by itself is not sufficient to authorize payments from the Treasury”). Creating and satisfying a Government obligation, therefore, typically involves four steps: (1) Congress passes an organic statute (like the Affordable Care Act) that creates a program, agency, or function; (2) Congress passes an Act authorizing appropriations; (3) Congress enacts the appropriation, granting “budget authority” to incur obligations and make payments, and designating the funds to be drawn; and (4) the relevant Government entity begins incurring the obligation. See *id.*, at 2–56; see also Op. Comp. Gen., B-193573 (Dec. 19, 1979).

But Congress can deviate from this pattern. It may, for instance, authorize agencies to enter into contracts and “incur obligations in advance of appropriations.” GAO Redbook 2–4. In that context, the contracts “constitute obligations binding on the United States,” such that a “failure or refusal by Congress to make the necessary appropriation would not defeat the obligation, and the party entitled to payment would most likely be able to recover in a lawsuit.” *Id.*, at 2–5; see also, *e. g.*, *Cherokee Nation of Okla. v. Leavitt*, 543 U.S. 631, 636–638 (2005) (rejecting the Government’s argument that it is legally bound by its contractual promise to pay “if, and only if, Congress appropriated suffi-

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cient funds”); *Salazar v. Ramah Navajo Chapter*, 567 U. S. 182, 191 (2012) (“Although the agency itself cannot disburse funds beyond those appropriated to it, the Government’s ‘valid obligations will remain enforceable in the courts’” (quoting 2 GAO Redbook 6–17 (2d ed. 1992))).

Congress can also create an obligation directly by statute, without also providing details about how it must be satisfied. Consider, for example, *United States v. Langston*, 118 U. S. 389 (1886). In that case, Congress had enacted a statute fixing an official’s annual salary at “\$7,500 from the date of the creation of his office.” *Id.*, at 394. Years later, however, Congress failed to appropriate enough funds to pay the full amount, prompting the officer to sue for the remainder. *Id.*, at 393. Understanding that Congress had created the obligation by statute, this Court held that a subsequent failure to appropriate enough funds neither “abrogated [n]or suspended” the Government’s pre-existing commitment to pay. *Id.*, at 394. The Court thus affirmed judgment for the officer for the balance owed. *Ibid.*⁵

The GAO shares this view. As the Redbook explains, if Congress created an obligation by statute without detailing how it will be paid, “an agency could presumably meet a funding shortfall by such measures as making prorated payments.” GAO Redbook 2–36, n. 39. But “such actions would be only temporary pending receipt of sufficient funds to honor the underlying obligation” and “[t]he recipient would remain legally entitled to the balance.” *Ibid.* Thus, the GAO warns, although a “failure to appropriate” funds

⁵The Government suggests that *Langston* is irrelevant because that case predates the Judgment Fund, cf. n. 3, *supra*, meaning that the Court “had no occasion” to determine whether the statute at issue “authorized a money-damages remedy” against the Government, Brief for United States 30. But by affirming a judgment against the United States, *Langston* necessarily confirmed the Government’s obligation to pay independent of a specific appropriation. What remedies ensure that the Government makes good on its duty to pay is a separate question that we take up below. See Part IV, *infra*.

“will prevent administrative agencies from making payment,” that failure “is unlikely to prevent recovery by way of a lawsuit.” *Id.*, at 2–63 (citing, *e. g.*, *Langston*, 118 U. S., at 394).

Put succinctly, Congress can create an obligation directly through statutory language.

B

Section 1342 imposed a legal duty of the United States that could mature into a legal liability through the insurers’ actions—namely, their participating in the healthcare exchanges.

This conclusion flows from § 1342’s express terms and context. See, *e. g.*, *Merit Management Group, LP v. FTI Consulting, Inc.*, 583 U. S. 366, 378 (2018) (statutory interpretation “begins with the text”). The first sign that the statute imposed an obligation is its mandatory language: “shall.” “Unlike the word ‘may,’ which implies discretion, the word ‘shall’ usually connotes a requirement.” *Kingdomware Technologies, Inc. v. United States*, 579 U. S. 162, 171 (2016); see also *Lexecon Inc. v. Milberg Weiss Bershad Hynes & Lerach*, 523 U. S. 26, 35 (1998) (observing that “‘shall’” typically “creates an obligation impervious to . . . discretion”). Section 1342 uses the command three times: The HHS Secretary “shall establish and administer” the Risk Corridors program from 2014 to 2016, “shall provide” for payments according to a precise statutory formula, and “shall pay” insurers for losses exceeding the statutory threshold. §§ 1342(a), (b)(1), 114 Stat. 211, 42 U. S. C. §§ 18062(a), (b)(1).

Section 1342’s adjacent provisions also underscore its mandatory nature. In § 1341 (a reinsurance program) and § 1343 (a risk-adjustment program), the Affordable Care Act differentiates between when the HHS Secretary “shall” take certain actions and when she “may” exercise discretion. See § 1341(b)(2), 124 Stat. 209, 42 U. S. C. § 18061(b)(2) (“[T]he Secretary . . . shall include” a formula that “may be de-

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signed” in multiple ways); § 1343(b), 124 Stat. 212, 42 U. S. C. § 18063(b) (“The Secretary . . . shall establish” and “may utilize” certain criteria). Yet Congress chose mandatory terms for § 1342. “When,” as is the case here, Congress “distinguishes between ‘may’ and ‘shall,’ it is generally clear that ‘shall’ imposes a mandatory duty.” *Kingdomware*, 579 U. S., at 172.

Nothing in § 1342 requires the Risk Corridors program to be budget neutral, either. Nor does the text suggest that the Secretary’s payments to unprofitable plans pivoted on profitable plans’ payments to the Secretary, or that a partial payment would satisfy the Government’s whole obligation. Thus, without “any indication” that § 1342 allows the Government to lessen its obligation, we must “give effect to [Section 1342’s] plain command.” *Lexecon*, 523 U. S., at 35. That is, the statute meant what it said: The Government “shall pay” the sum that § 1342 prescribes.⁶

C

The Government does not contest that § 1342’s plain terms appeared to create an obligation to pay whatever amount the statutory formula provides. It insists instead that the Appropriations Clause, Art. I, § 9, cl. 7, and the Anti-Deficiency Act, 31 U. S. C. § 1341, “qualified” that obligation by making “HHS’s payments contingent on appropriations by Congress.” Brief for United States 20. “Because Congress did not appropriate funds beyond the amounts collected” from profitable plans, this argument goes, “HHS’s

⁶Our conclusion matches the interpretations that HHS and CMS have repeated since before the Risk Corridors program began. In the agencies’ view, the Risk Corridors program was “not statutorily required to be budget neutral” and instead required HHS to “remit payments” “[r]egardless of the balance of payments and receipts.” 78 Fed. Reg. 15473 (HHS regulation); accord, 79 Fed. Reg. 30260 (CMS regulation noting that even “[i]n the unlikely event of a shortfall for the 2015 program year, . . . the Affordable Care Act requires the Secretary to make full payments to issuers”).

statutory duty [to pay unprofitable plans] extended only to disbursing those collected amounts.” *Id.*, at 24–25.

That does not follow. Neither the Appropriations Clause nor the Anti-Deficiency Act addresses whether Congress itself can create or incur an obligation directly by statute. Rather, both provisions constrain how federal employees and officers may make or authorize payments without appropriations. See U. S. Const., Art. I, § 9, cl. 7 (requiring an “Appropriatio[n] made by Law” before money may “be drawn” to satisfy a payment obligation); 31 U. S. C. § 1341(a)(1)(A) (“An officer or employee of the United States Government . . . may not . . . make or authorize an expenditure or obligation exceeding an amount available in an appropriation or fund for the expenditure or obligation”). As we have explained, “[a]n appropriation *per se* merely imposes limitations upon the Government’s own agents,” but “‘its insufficiency does not pay the Government’s debts, nor cancel its obligations.’” *Ramah*, 567 U. S., at 197 (quoting *Ferris v. United States*, 27 Ct. Cl. 542, 546 (1892)). If anything, the Anti-Deficiency Act confirms that Congress can create obligations without contemporaneous funding sources: That Act’s prohibitions give way “as specified” or “authorized” by “any other provision of law.” 31 U. S. C. § 1341(a)(1). Here, the Government’s obligation was authorized by the Risk Corridors statute.

And contrary to the Government’s view, § 1342’s obligation-creating language does not turn on whether Congress expressly provided “budget authority” before appropriating funds. Budget authority is an agency’s power “provided by Federal law to incur financial obligations,” 88 Stat. 297, 2 U. S. C. § 622(2)(A), “that will result in immediate or future outlays of government funds,” GAO Redbook 2–1; see also *id.*, at 2–55 (“Agencies may incur obligations only after Congress grants budget authority”); GAO, A Glossary of Terms Used in the Federal Budget Process, at 20–21. As explained above, Congress usually gives budget authority

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through an appropriations Act or by expressly granting an agency authority to contract for the Government. See GAO Redbook 2–1 to 2–5. But budget authority is not necessary for Congress itself to create an obligation by statute. See *Langston*, 118 U. S., at 394; cf. *Raines v. Byrd*, 521 U. S. 811, 815 (1997) (treating legal obligations of the Government as distinct from budget authority).

The Government’s arguments also conflict with well-settled principles of statutory interpretation. At bottom, the Government contends that the existence and extent of its obligation here is “subject to the availability of appropriations.” Brief for United States 41. But that language appears nowhere in § 1342, even though Congress could have expressly limited an obligation to available appropriations or specific dollar amounts. Indeed, Congress did so explicitly in other provisions of the Affordable Care Act.⁷

⁷See, e. g., 42 U. S. C. § 280k(a) (“The Secretary . . . shall, subject to the availability of appropriations, establish a 5-year national, public education campaign”); § 293k(c) (“Fifteen percent of the amount appropriated . . . in each . . . fiscal year shall be allocated to [certain] physician assistant training programs”); § 293k–1(e) (“There is authorized to be appropriated to carry out this section, \$10,000,000”); § 293k–2(e) (payments “made to an entity from an award of a grant or contract under [§ 293k–2(a)] shall be . . . subject to the availability of appropriations for the fiscal year involved to make the payments”); § 300hh–31(a) (“Subject to the availability of appropriations, the Secretary . . . shall establish [an epidemiology-laboratory program] to award grants”); note following § 1396a (“In no case may . . . the aggregate amount of payments made by the Secretary to eligible States under this section exceed \$75,000,000”); § 1397m–1(b)(2)(A) (“Subject to the availability of appropriations . . . the amount paid to a State for a fiscal year under [an adult protective services program] shall equal . . .”).

This kind of limiting language is not unique to the Affordable Care Act. When Congress has restricted “shall pay” language to an appropriation or available funds, it has done so expressly. See, e. g., 2 U. S. C. § 2064; 5 U. S. C. § 8334; 7 U. S. C. §§ 2013, 2031, 3243, 6523, 7717; 10 U. S. C. §§ 1175, 1413a, 1598, 2031, 2410j, 2774, 9780; 12 U. S. C. § 3337; 15 U. S. C. § 4723; 16 U. S. C. §§ 45f, 410aa–1, 426n, 459e–1, 460m–16, 698f, 1852; 20 U. S. C. §§ 80q–5, 1070a, 1134b, 1161g; 22 U. S. C. § 2906; 25 U. S. C. § 1912; 30

This Court generally presumes that “‘when Congress includes particular language in one section of a statute but omits it in another,’” Congress “‘intended a difference in meaning.’” *Digital Realty Trust, Inc. v. Somers*, 583 U. S. 149, 161 (2018) (quoting *Loughrin v. United States*, 573 U. S. 351, 358 (2014) (alterations omitted)). The Court likewise hesitates “‘to adopt an interpretation of a congressional enactment which renders superfluous another portion of that same law.’” *Republic of Sudan v. Harrison*, 587 U. S. 1, 12 (2019) (quoting *Mackey v. Lanier Collection Agency & Service, Inc.*, 486 U. S. 825, 837 (1988)). The “subject to appropriations” and payment-capping language in other sections of the Affordable Care Act would be meaningless had § 1342 simultaneously achieved the same end with silence.

In sum, the plain terms of the Risk Corridors provision created an obligation neither contingent on nor limited by the availability of appropriations or other funds.

III

The next question is whether Congress impliedly repealed the obligation through its appropriations riders. It did not.

U. S. C. § 1314; 32 U. S. C. § 716; 34 U. S. C. § 12573; 38 U. S. C. § 5317A; 42 U. S. C. §§ 303, 624, 655, 677, 1203, 1353, 1396b, 8623, 12622, 16014, 16512; 46 U. S. C. §§ 51504, 53106, 53206; 47 U. S. C. § 395; 49 U. S. C. § 5312; 50 U. S. C. §§ 4236, 4237; 52 U. S. C. § 21061.

Congress has also been explicit when it has capped payments, often setting a dollar amount or designating a specific fund from which the Government shall pay. See, e.g., 5 U. S. C. §§ 8102a, 8134, 8461; 7 U. S. C. §§ 26, 6523; 10 U. S. C. § 1413a; 16 U. S. C. §§ 450e–1, 460kk; 19 U. S. C. § 2296; 20 U. S. C. §§ 1070g–1, 1078, 3988, 5607; 22 U. S. C. § 3681; 30 U. S. C. § 1240a; 31 U. S. C. § 3343; 38 U. S. C. § 1542; 42 U. S. C. §§ 290bb–38, 295h, 618, 5318a, 15093; 43 U. S. C. §§ 1356a, 1619; 46 U. S. C. § 53106; 50 U. S. C. § 4114.

These common limitations—and our discussion below, see Part IV, *infra*—diminish the dissent’s concern that other statutes may support a damages action in the Court of Federal Claims. *Post*, at 331 (opinion of ALITO, J.).

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A

Because Congress did not expressly repeal § 1342, the Government seeks to show that Congress impliedly did so. But “repeals by implication are not favored,” *Morton v. Mancari*, 417 U. S. 535, 549 (1974) (internal quotation marks omitted), and are a “rarity,” *J. E. M. Ag Supply, Inc. v. Pioneer Hi-Bred Int’l, Inc.*, 534 U. S. 124, 142 (2001) (internal quotation marks omitted). Presented with two statutes, the Court will “regard each as effective”—unless Congress’ intention to repeal is “‘clear and manifest,’” or the two laws are “irreconcilable.” *Morton*, 417 U. S., at 550–551 (quoting *United States v. Borden Co.*, 308 U. S. 188, 198 (1939)); see also *FCC v. NextWave Personal Communications Inc.*, 537 U. S. 293, 304 (2003) (“[W]hen two statutes are capable of co-existence, it is the duty of the courts, absent a clearly expressed congressional intention to the contrary, to regard each as effective” (internal quotation marks omitted)).

This Court’s aversion to implied repeals is “especially” strong “in the appropriations context.” *Robertson v. Seattle Audubon Soc.*, 503 U. S. 429, 440 (1992); see also *New York Airways, Inc. v. United States*, 177 Ct. Cl. 800, 810, 369 F. 2d 743, 748 (1966). The Government must point to “something more than the mere omission to appropriate a sufficient sum.” *United States v. Vulte*, 233 U. S. 509, 515 (1914); accord, GAO Redbook 2–63 (“The mere failure to appropriate sufficient funds is not enough”). The question, then, is whether the appropriations riders manifestly repealed or discharged the Government’s uncapped obligation.

Langston confirms that the appropriations riders did neither. Recall that in *Langston*, Congress had established a statutory obligation to pay a salary of \$7,500, yet later appropriated a lesser amount. 118 U. S., at 393–394. This Court held that Congress did not “abrogat[e] or suspen[d]” the salary-fixing statute by “subsequent enactments [that] merely appropriated a less amount” than necessary to pay, because the appropriations bill lacked “words that expressly

or by clear implication modified or repealed the previous law.” *Id.*, at 394.

Vulte reaffirmed that a mere failure to appropriate does not repeal or discharge an obligation to pay. At issue there was whether certain appropriations Acts had repealed a Government obligation to pay bonuses to military servicemen. 233 U. S., at 511–512. A 1902 statute had provided a 10 percent bonus to officers serving outside the contiguous United States, but in 1906 and 1907, Congress enacted appropriations funding the bonuses for officers “except those in] P[ue]rto Rico and Hawaii.” *Id.*, at 512. Then, in 1908, Congress enacted a statute stating “[t]hat the increase of pay . . . shall be as now provided by law.” *Id.*, at 513. When Lieutenant Nelson Vulte sought a bonus for his service in Puerto Rico from 1908 to 1909, the Government refused, contending that the appropriations Acts had impliedly repealed its obligation altogether.

Relying on *Langston*, *Vulte* rejected that argument. “[I]t is to be remembered,” the Court wrote, that the alleged repeals “were in appropriation acts and no words were used to indicate any other purpose than the disbursement of a sum of money for the particular fiscal years.” 233 U. S., at 514. At most, the appropriations had “temporarily suspend[ed]” payments, but they did not use “‘the most clear and positive terms’” required to “modif[y] or repea[l]” the Government’s obligation itself. *Id.*, at 514–515 (quoting *Minis v. United States*, 15 Pet. 423, 445 (1841)). Because the Government had failed to show that repeal was the only “‘reasonable interpretation’” of the appropriation Acts, the obligation persisted. 233 U. S., at 515 (quoting *Minis*, 15 Pet., at 445).

The parallels among *Langston*, *Vulte*, and these cases are clear. Here, like in *Langston* and *Vulte*, Congress “merely appropriated a less amount” than that required to satisfy the Government’s obligation, without “expressly or by clear implication modif[ying]” it. *Langston*, 118 U. S., at 394; see

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also *Vulte*, 233 U. S., at 515. The riders stated that “[n]one of the funds made available by this Act,” as opposed to any other sources of funds, “may be used for payments under” the Risk Corridors statute. § 227, 128 Stat. 2491; accord, § 225, 129 Stat. 2624; § 223, 131 Stat. 543. But “no words were used to indicate any other purpose than the disbursement of a sum of money for the particular fiscal years.” *Vulte*, 233 U. S., at 514. And especially because the Government had already begun incurring the prior year’s obligation each time Congress enacted a rider, reasonable (and nonrepealing) interpretations exist. Indeed, finding a repeal in these circumstances would raise serious questions whether the appropriations riders retroactively impaired insurers’ rights to payment. See *Landgraf v. USI Film Products*, 511 U. S. 244, 265–266, 280 (1994); see also GAO Redbook 1–61 to 1–62.

The relevant agencies’ responses to the riders also undermine the case for an implied repeal here. Had Congress “clearly expressed” its intent to repeal, one might have expected HHS or CMS to signal the sea change. *Morton*, 417 U. S., at 551. But even after Congress enacted the first rider, the agencies reiterated that “the Affordable Care Act requires the Secretary to make full payments to issuers,” 80 Fed. Reg. 10779, and that “HHS w[ould] record risk corridors payments due as an obligation of the United States Government for which full payment is required,” CMS, Risk Corridors Payments for 2015, at 1. They understood that profitable insurers’ payments to the Government would not dispel the Secretary’s obligation to pay unprofitable insurers, even “in the event of a shortfall.” *Ibid*.

Given the Court’s potent presumption in the appropriations context, an implied-repeal-by-rider must be made of sterner stuff.

B

To be sure, this Court’s implied-repeal precedents reveal two situations where the Court has deemed appropriations

measures irreconcilable with statutory obligations to pay. But neither one applies here.

The first line of cases involved appropriations bills that, without expressly invoking words of “repeal,” reached that outcome by completely revoking or suspending the underlying obligation before the Government began incurring it. See *United States v. Will*, 449 U. S. 200 (1980); *United States v. Dickerson*, 310 U. S. 554 (1940). *Will* concluded that Congress had canceled an obligation to pay cost-of-living raises through appropriations bills that bluntly stated that future raises “‘shall not take effect’” or that restricted funds from “‘this Act or any other Act.’” 449 U. S., at 206–207, 223.⁸ Likewise, *Dickerson* held that a series of appropriations bills repealed an obligation to pay military-reenlistment bonuses due in particular fiscal years. See 310 U. S., at 561. One enactment “‘hereby suspended’” the bonuses before they took effect, and another “‘continued’” this suspension for additional years, providing that “‘no part of any appropriation contained in this or any other Act for the [next] fiscal year . . . shall be available for the payment [of the bonuses] notwithstanding’” the statute creating the Government’s obligation to pay. *Id.*, at 555–557.

Here, by contrast, the appropriations riders did not use the kind of “shall not take effect” language decisive in *Will*. See 449 U. S., at 222–223. Nor did the riders purport to “suspend” § 1342 prospectively or to foreclose funds from “any other Act” “notwithstanding” § 1342’s money-mandating text. *Dickerson*, 310 U. S., at 556–557; see also *Will*, 449 U. S., at 206–207. Neither *Will* nor *Dickerson* supports the Federal Circuit’s implied-repeal holding.

The second strand of precedent turned on provisions that reformed statutory payment formulas in ways “irreconcilable” with the original methods. See *United States v.*

⁸Still, *Will* held unconstitutional the changes that purported to reduce the Government’s payment obligations after the obligation-creating statutes had already taken effect. See 449 U. S., at 224–226, 230.

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Mitchell, 109 U. S. 146, 150 (1883); see also *United States v. Fisher*, 109 U. S. 143, 145–146 (1883). In *Mitchell*, an appropriations bill decreased the salaries for federal interpreters (from \$400 to \$300) and changed how the agency would distribute any “‘additional pay’” (from “‘all emoluments and allowances whatsoever’” to payments at the agency head’s discretion). 109 U. S., at 147, 149. And in *Fisher*, Congress altered an obligation to pay judges \$3,000 per year by providing that a lesser appropriation would be “‘in full compensation’” for services rendered in the next fiscal year. 109 U. S., at 144.⁹

The appropriations bills here created no such conflict as in *Mitchell* and *Fisher*. The riders did not reference § 1342’s payment formula at all, let alone “irreconcilabl[y]” change it. *Mitchell*, 109 U. S., at 150. Nor did they provide that Risk Corridors payments from profitable plans would be “‘in full compensation’” of the Government’s obligation to unprofitable plans. *Fisher*, 109 U. S., at 146. Instead, the riders here must be taken at face value: as a “mere omission to appropriate a sufficient sum.” *Vulte*, 233 U. S., at 515. Congress could have used the kind of language we have held to effect a repeal or suspension—indeed, it did so in other provisions of the relevant appropriations bills. See, e. g., § 716, 128 Stat. 2163 (“None of the funds appropriated or otherwise made available by this or any other Act shall be used . . . ”); § 714, 129 Stat. 2275 (same); § 714, 131 Stat. 168 (same). But for the Risk Corridors program, it did not.

⁹The Federal Circuit has also recognized that Congress may override a statutory payment formula through an appropriation that expressly earmarks a lesser amount for that payment obligation in the upcoming fiscal year. See *Highland Falls-Fort Montgomery Central School Dist. v. United States*, 48 F. 3d 1166, 1169–1171 (1995); see also GAO Redbook 2–62 (discussing *Highland Falls* and noting that earmarking a lesser amount can create an “irreconcilable conflict” with a statutory payment formula). Perhaps because these cases do not involve an earmark to satisfy an incompatible payment formula, the Federal Circuit did not rely on *Highland Falls* below.

C

We also find unpersuasive the only pieces of legislative history that the Federal Circuit cited. According to the Court of Appeals, a floor statement and an unpublished GAO letter provided “clear intent” to cancel or “suspend” the Government’s Risk Corridors obligation. See 892 F. 3d, at 1318–1319, 1325–1326. We doubt that either source could ever evince the kind of clear congressional intent required to repeal a statutory obligation through an appropriations rider. See *United States v. Kwai Fun Wong*, 575 U.S. 402, 412 (2015). But even if they could, they did not do so here.

The floor statement (which Congress adopted as an “explanatory statement”) does not cross the clear-expression threshold. See 160 Cong. Rec. 17805, 18307 (2014); see also § 4, 128 Stat. 2132. That statement interpreted an HHS regulation as saying that “the risk corridor program will be budget neutral, meaning that the federal government will never pay out more than it collects.” 160 Cong. Rec., at 18307.¹⁰ But that misunderstands the referenced regulation, which provided only that HHS “project[ed]” that the program would be budget neutral and that the agency “intend[ed]” to treat it that way, while making clear that “it [was] difficult to estimate” the “aggregate risk corridors payments and charges at [the] time.” 79 Fed. Reg. 13829. HHS’ goals did not alter its prior interpretation that the Risk Corridors program was “not statutorily required to be budget neutral.”

¹⁰The statement provides in full:

“In 2014, HHS issued a regulation stating that the risk corridor program will be budget neutral, meaning that the federal government will never pay out more than it collects from issuers over the three year period risk corridors are in effect. The agreement includes new bill language to prevent the CMS Program Management appropriation account from being used to support risk corridors payments.” 160 Cong. Rec., at 18307.

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78 Fed. Reg. 15473. And neither the floor statement nor the appropriations rider said anything requiring budget neutrality or redefining § 1342’s formula.¹¹

The GAO letter is even more inapt. In it, the GAO responded to two legislators’ inquiry by identifying two sources of available funding for the first year of Risk Corridors payments: CMS’ appropriations for the 2014 fiscal year and profitable insurance plans’ payments to the Secretary. 892 F. 3d, at 1318; see also App. in No. 17–1994 (CA Fed.), pp. 234–240. Because the rider cut off the first source of funds, the Federal Circuit inferred congressional intent “to temporarily cap” the Government’s payments “at the amount of payments” profitable plans made “for each of the applicable years” of the Risk Corridors program. 892 F. 3d, at 1325. That was error. The letter has little value because it appears nowhere in the legislative record. Perhaps for that reason, the Government does not rely on it.

IV

Having found that the Risk Corridors statute established a valid yet unfulfilled Government obligation, this Court must turn to a final question: Where does petitioners’ lawsuit belong, and for what relief? We hold that petitioners prop-

¹¹In this implied-repeal context, it is also telling that Congress considered—but did not enact—bills containing the type of text that may have satisfied the clear-expression rule. See, *e. g.*, Obamacare Taxpayer Bailout Protection Act, S. 2214, 113th Cong., 2d Sess., § 2 (2014) (“[T]he Secretary shall ensure that payments out and payments in . . . are provided for in amounts that the Secretary determines are necessary to reduce to zero the cost . . . to the Federal Government of carrying out the program under this section’”); Taxpayer Bailout Protection Act, S. 359, 114th Cong., 1st Sess., § 2 (2015) (“‘The Secretary shall ensure that the amount of payments to plans . . . does not exceed the amount of payments to the Secretary’” and “‘shall proportionately decrease the amount of payments to plans’”); Taxpayer Bailout Protection Act, H. R. 724, 114th Cong., 1st Sess., § 2 (2015) (same).

erly relied on the Tucker Act to sue for damages in the Court of Federal Claims.

A

The United States is immune from suit unless it unequivocally consents. *United States v. Navajo Nation*, 556 U. S. 287, 289 (2009). The Government has waived immunity for certain damages suits in the Court of Federal Claims through the Tucker Act, 24 Stat. 505. See *United States v. Mitchell*, 463 U. S. 206, 212 (1983). That statute permits “claim[s] against the United States founded either upon the Constitution, or any Act of Congress or any regulation of an executive department, or upon any express or implied contract with the United States, or for liquidated or unliquidated damages in cases not sounding in tort.” 28 U. S. C. § 1491(a)(1).

The Tucker Act, however, does not create “substantive rights.” *Navajo Nation*, 556 U. S., at 290. A plaintiff relying on the Tucker Act must premise her damages action on “other sources of law,” like “statutes or contracts.” *Ibid.* For that reason, “[n]ot every claim invoking the Constitution, a federal statute, or a regulation is cognizable under the Tucker Act.” *Mitchell*, 463 U. S., at 216. Nor will every “failure to perform an obligation . . . creat[e] a right to monetary relief” against the Government. *United States v. Bormes*, 568 U. S. 6, 16 (2012).

To determine whether a statutory claim falls within the Tucker Act’s immunity waiver, we typically employ a “fair interpretation” test. A statute creates a “right capable of grounding a claim within the waiver of sovereign immunity if, but only if, it ‘can fairly be interpreted as mandating compensation by the Federal Government for the damage sustained.’” *United States v. White Mountain Apache Tribe*, 537 U. S. 465, 472 (2003) (quoting *Mitchell*, 463 U. S., at 217); see also *Navajo Nation*, 556 U. S., at 290 (“The other source of law need not *explicitly* provide that the right or duty it creates is enforceable through a suit for damages”). Satisfy-

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ing this rubric is generally both necessary and sufficient to permit a Tucker Act suit for damages in the Court of Federal Claims. *White Mountain Apache*, 537 U.S., at 472–473.¹²

But there are two exceptions. The Tucker Act yields when the obligation-creating statute provides its own de-

¹²Relying on *Alexander v. Sandoval*, 532 U.S. 275 (2001), the dissent’s logic suggests that a federal statute could never provide a cause of action for damages absent magic words explicitly inviting suit. See *post*, at 329–330, 332–334. We have repeatedly rejected that notion—including in opinions written by *Sandoval*’s author. See, e.g., *United States v. Bormes*, 568 U.S. 6, 15–16 (2012); *United States v. Navajo Nation*, 556 U.S. 287, 290 (2009). Not even *Sandoval* went as far as the dissent; that decision instead explained that “[t]he judicial task is to interpret the statute Congress has passed to determine whether it displays an intent to create not just a private right but also a private remedy.” 532 U.S., at 286. That is precisely what the money-mandating inquiry does: It provides a framework for determining when Congress has authorized a claim against the Government.

This framework also makes good sense. Cf. *post*, at 331–332. As the author of *Sandoval* explained, if a statutory obligation to pay money is mandatory, then the congressionally conferred “right to receive money,” *post*, at 335, n. 5, will typically display an intent to provide a damages remedy for the defaulted amount, *Bowen v. Massachusetts*, 487 U.S. 879, 923 (1988) (Scalia, J., dissenting) (a “statute commanding the payment of a specified amount of money by the United States impliedly authorizes (absent other indication) a claim for damages in the defaulted amount”). As this Court recently observed, Congress enacted the Tucker Act to “suppl[y] the missing ingredient for an action against the United States for the breach of monetary obligations not otherwise judicially enforceable.” *Bormes*, 568 U.S., at 12.

By the dissent’s contrary suggestion, not only is a mandatory statutory obligation to pay meaningless, so too is a constitutional one. After all, the Constitution did not “expressly create . . . a right of action,” *post*, at 330, when it mandated “just compensation” for Government takings of private property for public use, Amdt. 5; see also *First English Evangelical Lutheran Church of Glendale v. County of Los Angeles*, 482 U.S. 304, 315–316 (1987). Although there is no express cause of action under the Takings Clause, aggrieved owners can sue through the Tucker Act under our case law. E.g., *Ruckelshaus v. Monsanto Co.*, 467 U.S. 986, 1016–1017 (1984) (citing *United States v. Causby*, 328 U.S. 256, 267 (1946)).

tailed remedies, or when the Administrative Procedure Act, 60 Stat. 237, provides an avenue for relief. See *Bormes*, 568 U. S., at 13, 16; *Bowen v. Massachusetts*, 487 U. S. 879, 900–908 (1988).

B

Petitioners clear each hurdle: The Risk Corridors statute is fairly interpreted as mandating compensation for damages, and neither exception to the Tucker Act applies.

1

Rarely has the Court determined whether a statute can “fairly be interpreted as mandating compensation by the Federal Government.” *Mitchell*, 463 U. S., at 216–217 (internal quotation marks omitted). Likely this is because so-called money-mandating provisions are uncommon, see M. Solomson, *Court of Federal Claims: Jurisdiction, Practice, and Procedure* 4–18 (2016), and because Congress has at its disposal several blueprints for conditioning and limiting obligations, see n. 7, *supra*; see also GAO Redbook 2–22 to 2–24, 2–54 to 2–58. But Congress used none of those tools in § 1342. The Risk Corridors statute is one of the rare laws permitting a damages suit in the Court of Federal Claims.

Here again § 1342’s mandatory text is significant. Statutory “‘shall pay’ language” often reflects congressional intent “to create both a right and a remedy” under the Tucker Act. *Bowen*, 487 U. S., at 906, n. 42; see also, *e. g., id.*, at 923 (Scalia, J., dissenting) (“[A] statute commanding the payment of a specified amount of money by the United States impliedly authorizes (absent other indication) a claim for damages in the defaulted amount”); *United States v. Testan*, 424 U. S. 392, 404 (1976) (suggesting that the Back Pay Act, 5 U. S. C. § 5596, may permit damages suits under the Tucker Act “in carefully limited circumstances”); *Mitchell*, 463 U. S., at 217 (similar). Section 1342’s triple mandate—that the HHS Secretary “shall establish and administer” the program, “shall provide” for payment according to the statutory